



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00430 | Back 40, 3rd Filing – Final Plat
Date: February 13, 2023

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/13/2023
- Public Services Committee 2/22/2023
- Consideration 2/27/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their February 6, 2023 meeting and recommended the Governing Body approve this application with the exception listed in the Staff Report by a vote of 5-0.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Final Plat Map (dated 12/15/2022)
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR BACK 40 SUBDIVISION, THIRD FILING, A REPLAT OF A PORTION OF LOT 1, BLOCK 1 BACK 40 SUBDIVISION FIRST FILING, LOT 1, BLOCK 2 AND LOT 1, BLOCK 3 BACK 40 SUBDIVISION SECOND FILING, AND LOT 1 BLOCK 1 CHEYENNE ICE & EVENTS CENTER 4TH FILING BEING SITUATED IN A PORTION OF SECTION 1, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED NORTH OF THE INTERSECTION OF GRANT AVENUE AND W LINCOLNWAY).”

WHEREAS, Dozzer LLC have subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Dozzer LLC the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and,

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office;

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Back 40 Subdivision, Third Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2023.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK



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MEMO

TO: Planning Commission Members

FROM: Charles W. Bloom, AICP, Planning and Development Director

SUBJECT: UDC-22-00430: Back 40 Subdivision, Third Filing Plat (Expedited Review)

DATE: February 6, 2023

On January 30, 2023, the landowner of this application requested this item be removed from the February 6, 2023, meeting for future consideration. Published notice of the public hearing has already occurred which requires this item to be placed on the agenda. Staff recommends the item be postponed per the request of the majority landowner.

Recommended Motion:

Move to postpone this item to the March 6, 2023, Planning Commission meeting.

Attachments:

February 6, 2023, Staff Report



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 6, 2023

STAFF REPORT

FILE: UDC-22-00430: Back 40 Subdivision, Third Filing Plat (Expedited Review)

REQUEST: A plat to create streets and 6 lots for future development

LOCATION: Between Old Happy Jack Road and Lincolnway, west of Missile Drive

APPLICANT: AVI - Brad Emmons

AGENT: AVI - Brad Emmons

OWNER: Dozzer LLC, City of Cheyenne

ZONING: MUB Mixed-use Business Emphasis and CB Community Business

PURPOSE: To establish a street network and lots for future development

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the Back 40 Subdivision, Third Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with a recommended exception to block size.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a plat create multiple lots and a street network for future development, to include a City-owned parcel and other parcels for commercial or residential development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Residential Mixed-use Commercial	CB Community Business, MUB Mixed-use Business Emphasis	Vacant
North	Mixed-use Residential Mixed-use Commercial	LI Light Industrial	Light Industrial, Industrial
South	Mixed-use Commercial	CB	Lodging
East	Mixed-use Commercial	CB	Entertainment, Vacant
West	Mixed-use Commercial, Mixed-use Residential, Public and Quasi Public	CB, LI	Vacant, Railroad, Outdoor Sales

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Preliminary Plat, the Commission must make the following findings required in UDC 2.1.2.d – a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

The future land use map within PlanCheyenne identifies this area as developing with a mix of residential and commercial uses, and the proposed plat in the existing zoning districts would be compatible with this objective. PlanCheyenne supports the use of existing infrastructure and timely provision of services (including emergency and education services). This development is proposed in an area which has largely existing infrastructure, although expansion of infrastructure is necessary for the lots within the site to develop. The property is within the Urban Service Boundary and has access to all utilities.

The Future Land Use Designation for this property and the surrounding area is Mixed-use Residential and Mixed-use Commercial. This property is also near a Regional Activity Center on the Future Land Use Map. Activity Centers are intended for a mix of commercial and residential uses with access to regional transportation. Regional-serving commercial uses is an expected component of an Activity Center. The lots and blocks proposed by this plat are compatible with these designations.

The application **complies** with this review criterion.

- 2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)**

The proposed plat extends streets with a logical layout and allows adjacent properties to develop. The size and location of lots is similar to those found in the area. The plat appears to be able to be served in a logical manner by utilities.

The application **complies** with this review criterion.

- 3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)**

Community Facilities and Fees (4.2):

The proposed subdivision is small and in an area with existing facilities. The City owns land within the plat boundary which can be developed with a public facility (such as a fire station or public park). For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre; however, fees are not applicable to City-owned lands or rights-of-way, and fees paid previously can be credited to those due with the plat. When the land was last platted the City did charge plat fees, and it assumed all applicable fees were paid. First filing was due at \$500 per acre. Second filing was due at current rates, but only charged for 2.6 acres. The remaining 14.7 acres at \$200 per acre comes out to **\$2,940** of Park Fees due at signing of the plat.

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure (Residential Enhancement Fee is \$400 per dwelling unit).

Transportation Network (4.3):

This plat is occurring within an area of the community which has largely been previously developed. The plat is limited by the railroad to the northwest. An exception for block sizes must be granted. A street connection is proposed to the undeveloped land to the west.

Open Space (4.4):

Open space is required at 750sqft per unit or 8% of the gross development area, whichever is less. However, due to the nature of this application, plat-level open space is not required.

Required Improvements (4.5):

The streets provided with this plat will need to be constructed. The owners are responsible for this development and some sort of construction or surety should be entered into prior to the signing of the plat (UDC 4.1.5.b).

Public Safety Fees (4.6):

Public Safety Fees will be due with building permits of new construction on the site.

The application **complies** with this review criterion, with an exception.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is specifically proposed with this project.

Review criterion **not applicable**.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

Drainage:

A drainage worksheet was submitted and reviewed. Staff expressed concern that the conceptual drainage plan is very limited in scope and does not include recommendations or assessments suggesting the feasibility of a long-term drainage plan. Further analysis will be expected with engineering plans and site plans.

Traffic:

A traffic worksheet was submitted and reviewed. There were no concerns with traffic at the plat level for the project as presented.

The application **complies** with this review criterion.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed plat proposes multiple lots for future commercial or residential development, with a public facility. No unbuildable lots are proposed.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

The plat proposes only buildable lots. The Plat does not propose any lots subject to this criterion.

Review criterion **not applicable**.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

The plat is adjacent to developed property to the north south and east. To the southeast and southwest are vacant lands (including the redeveloping Hitching Post property), and to the northwest is a railroad track. The plat provides a stub street to the southwest and otherwise integrates the street network with the surrounding area. The lots proposed are of a similar size to the surrounding development patterns.

The application **complies** with this review criterion.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

City staff is satisfied that this proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Remainder lots are not proposed with this plat.

Review criterion **not applicable**.

- 11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

- 12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

Through the review process and application of the Preliminary Plat, Staff recommended corrections for technical issues. These issues have been addressed with a revised submittal, and staff has no recommended conditions for this plat.

The application **complies** with this review criterion.

13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. The City needs to concur with the application
2. Technical corrections.
3. Drainage requirements needing to be addressed with the Site Plan.
4. Open Space to be with site plans.
5. Dual MUB-CB zoning on one of the proposed parcels.
6. Block size standards.

These issues have been addressed through a revised submittal, the dual-zoned parcel's concurrent zoning map amendment application, and Governing Body approval of the authorization to apply for the City (approved 1/23/2023).

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant, with the granting of an exception to block size requirements. The area this plat is proposed in an area with existing street network and a variety of uses. The proposal extends the street network appropriately, with the understanding that connections to the northwest is limited by the railroad.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body. **(Staff Recommendation)**
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

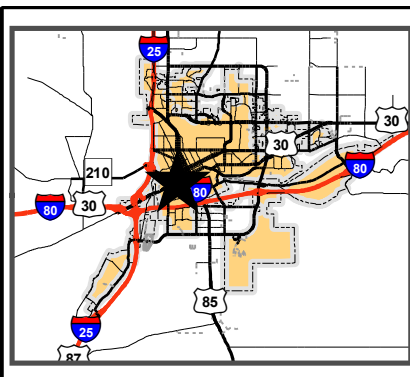
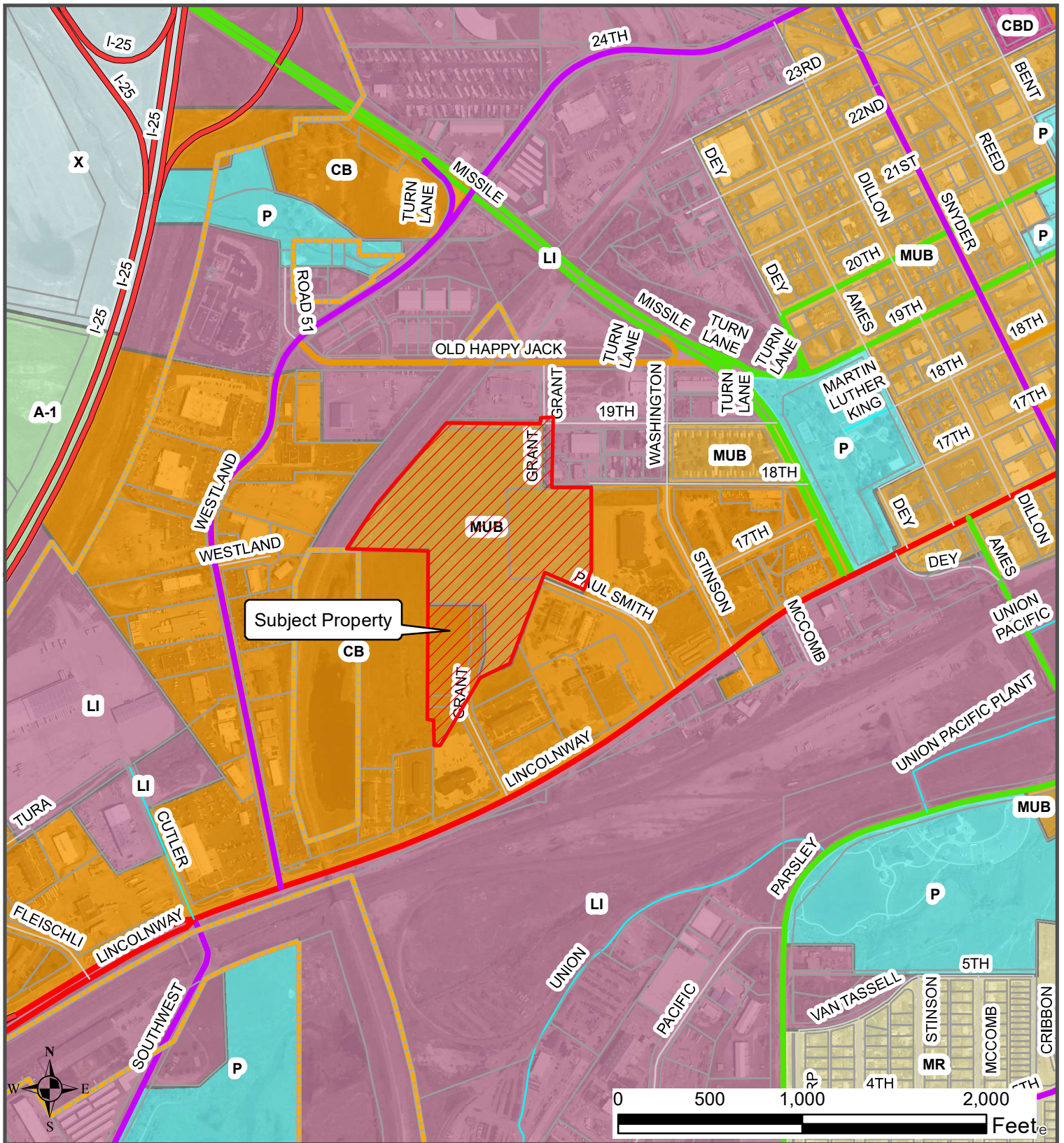
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body, with the following exception:

1. Exception to UDC 4.3.3.c, regarding minimum block size and connectivity for Block 2.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application Form
4. Preliminary Plat (dated 12/15/2022)
5. Final Plat (dated 12/15/2022)

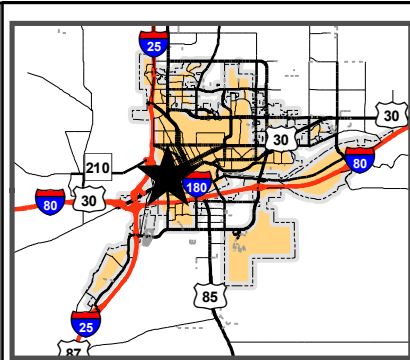
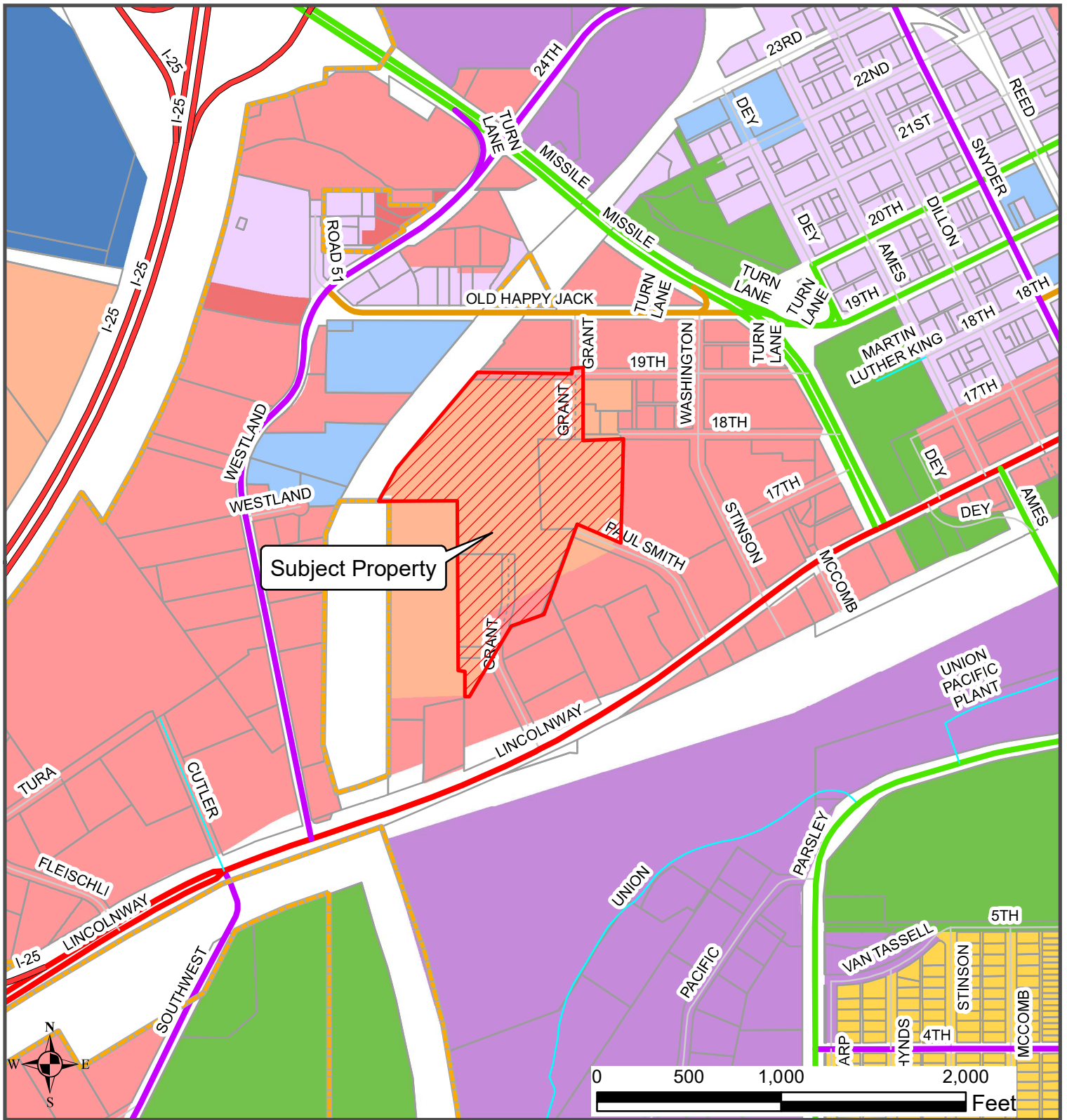


Attachment 1: Zoning Map UDC-22-00430

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUE / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-22-00430

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Plat - Expedited

Submission date: **16 November 2022, 8:19PM**

Receipt number: **27**

Related form version: **11**

General Information

Applicant Name: **DOZZER LLC**

Applicant Address: **2770 ARAPAHOE RD STE 132 PMB 196**

Applicant City: **LAFAYETTE**

Applicant State: **CO**

Applicant Zip Code: **80026**

Applicant Phone: **720 227-4232**

Applicant Email: **steph@lincolncourtcheyenne.com**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **DOZZER LLC**

Owner Address: **2770 ARAPAHOE RD STE 132 PMB 196**

Owner City: **LAFAYETTE**

Owner State:	CO
Owner Zip Code:	80026
Owner Phone:	720 227-4232
Owner Email:	steph@lincolncourtcheyenne.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Executed letter-of-authorization Back 40.pdf
Project Location (Street Address or General Location):	North of W. Linconlway, South of Old Happy Jack Road along Grant Ave
Assessor's Parcel ID number(s)	R0065309,R0065308,R0065307,R0066541
Total Project Area	26.13
Existing Zoning	MUB - Mixed-use Business Emphasis

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	Proposal to subdivide land and to plat Paul Smith Way, Grant Avenue and 18th Street
Current Subdivision	Back 40 1st and 2nd Filing. Cheyenne Ice and Events Center
Lots affected by this proposal	Back 40 B1, L1 Back 40 2nd B2,3 L1 Cheyenne Ice and Events Center 4th B1, L1
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	10/25/2022
Upload any pre-application meeting notes or summaries relevant to this proposal.	
Are any easements proposed to be added, modified, or removed? Yes	

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach	Open space will be provided on each lot with site plan submittal
Drainage Worksheet / Study	b40 dw_001.pdf
Transportation Worksheet / Study	b40 tw_001.pdf
Transportation Network Plan	4585 FINAL PLAT (2022-11-15).pdf
Preliminary Plat Drawing	4585 PRELIM PLAT (2022-09-28).pdf
Final Plat Drawing	Back 40 vacation.pdf 4585 FINAL PLAT (2022-11-15).pdf 4585 19TH ST ROW VAC (2022-11-16).pdf

I acknowledge that final stamped and signed mylars are required to be submitted prior to scheduling for Governing Body introduction.

Signature / Certification

Applicant Signature	Name of signatory: Brad Emmons  Uploaded signature image: brad emmons.jpg
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Please enter an email address for an email receipt.

emmons@avipc.com

LINE/FILE	DATE	REVISION	NO.
1	12/15/22		1
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